



SPONSOR: Rep. Gorman & Sen. Pinkney
Reps. Burns, Morrison, Lynn, Romer, Neal, Ortega,
Phillips, Kamela Smith, Snyder-Hall, Lambert; Sen.
Cruce

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 153

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO ARREST AND DETENTION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 19, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1914. Arrest or detention by private person prohibited.

Arrest or detention by any person who is not specifically authorized by statute to effect an arrest or detention is prohibited.

Section 2. Amend Chapter 65, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 6563. Incarceration upon arrest by private detective. [Repealed.]

~~All persons arrested by private detectives or private detective agencies on state, county or municipal warrants, or in any other manner, shall be incarcerated only in the custody of the Department or in a place provided by the State, county or municipality for the incarceration of persons.~~

§ 6564. Violation of § 6563 of this title. [Repealed.]

~~Whoever, being a private detective, violates § 6563 of this title shall be fined not less than \$100 nor more than \$500, or, in default of the payment of such fine, imprisoned not less than 6 months nor more than 1 year.~~

SYNOPSIS

This Act prohibits arrest or detention by any person who does not have explicit statutory authority to carry out an arrest or detention. The intent of this provision is to eliminate any doubt that a “citizen’s arrest” is not permitted in Delaware. Peace officers have statutory authority to make arrests, as do federal law enforcement agents and out-of-state police under some circumstances. There is also limited authority to detain a person suspected of shoplifting provided to a merchant, store supervisor, agent or employee of a merchant in § 840 of Title 11; to detain a person suspected of unlawful recording by a motion picture theater owner, supervisor, agent or employee under § 858 of Title 11; and to detain a person suspected of unlawful acts with a video lottery machine by a video lottery agent or any of its officers, employees or agents under § 1474 of Title 11.

This Act also deletes two outdated provisions of Chapter 65 of Title 11 that reference the exercise of arrest by private detectives. At the present time, private investigators do not have authority to make arrests in Delaware.